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AS AMENDED

By: Reinhardt

[state purchase card program - solicitation -
effective date]

SECTION 1. AMENDATORY 74 O.S. 2021, Section 85.5a, is amended to read as follows:

B. On a monthly basis the State Purchasing Director and institutions of higher education shall provide to the Director of the Office of Management and Enterprise Services (OMES) a complete listing in electronic format of all transactions paid by a state purchase card. The list shall contain the name of the purchaser and purchasing agency, amount of purchase and all available descriptions of items purchased.

C. Upon receipt of the list described in subsection B of this section, the Director of the OMES shall allow the public access to

1 the list in searchable format through its website defined in Section
2 46 of Title 62 of the Oklahoma Statutes.

3 D. The State Purchasing Director may authorize the use of a
4 state purchase card for acquisitions within the following
5 parameters:

6 1. No limit on the amount of the transaction for the following:

- 7 a. purchases from statewide contracts and from contracts
8 awarded by the State Purchasing Director for the
9 benefit of a state agency,
- 10 b. utilities,
- 11 c. interagency payments,
- 12 d. emergency acquisitions; provided, requirements to
13 establish an emergency pursuant to Section 5 of this
14 act or other applicable statute or rule have been met,
15 and
- 16 e. professional services as defined in Section 803 of
17 Title 18 of the Oklahoma Statutes; and

18 2. For any other transaction with a state purchase card, the
19 transaction shall not exceed the greater of Five Thousand Dollars
20 (\$5,000.00) or the limit determined by the State Purchasing
21 Director, not to exceed the fair and reasonable acquisition
22 threshold amount.

23 E. The State Purchasing Director may authorize personnel of the
24 Department of Commerce, upon a finding by the Secretary of Commerce

1 that such personnel have a legitimate need therefore, to utilize a
2 state purchase card for acquisitions for programs, functions or
3 services essential to the mission of the agency while traveling on
4 Department of Commerce business in foreign locations with
5 transaction limits not to exceed Thirty-five Thousand Dollars
6 (\$35,000.00). The purchase cardholders are required to sign a
7 purchase card agreement prior to becoming a cardholder and to attend
8 purchase card procedure training. The Department of Commerce will
9 conduct quarterly internal auditing on all purchase card
10 transactions associated with business and travel in foreign
11 locations.

12 F. Any political subdivision participating in the state
13 purchase card program may issue a solicitation pursuant to the
14 provisions Section 85.7 of this title for the acquisition of a
15 purchase card.

16 SECTION 2. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
18 RESOURCES

19 March 4, 2025 - DO PASS AS AMENDED
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